



File No.: EXP202404396

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 8, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 8, 2024, a complaint was received by this Agency submitted by A.A.A. (hereinafter, the complainant) against CAJA DE CRÉDITO DE LOS INGENIEROS, S.C.C. (hereinafter, the respondent) for not having duly attended to their right of access to their personal data. By email dated September 16, 2023, the complainant requested from the respondent "(...) Under LOPD everything you have regarding my person, without exception: contracts, recordings, signatures, correspondence, amortization and grace period payments, if applicable: I=CxRXT/36000, emails, etc." The respondent replied that they had prepared and attached a detailed response that included the requested information in encrypted form. Subsequently, they sent another email providing the password to access the information.

The complainant, considering the access provided to be incomplete, contacted the respondent again indicating that "(...) You have forgotten to send me the appraisal document and the invoice for it.", receiving the response that "(...) Regarding the incident you have reported, it is necessary to make the following clarification: The right of access recognized in privacy matters does not cover the obtaining of copies of banking documentation as a result of the existing business relationship with the Entity. Therefore, the information about the requested appraisal is understood to correspond to the data collected in a product acquisition order that the interested party placed at that time, which is why this documentation is considered as a document associated with the business relationship inherent to a mortgage product contract. This criterion was established by the AEPD in response to the appeal for reconsideration No. RR/00364/2021, and in the Resolution of Archiving of Actions followed in file EXP202212480. For other matters, you may contact the Member Services channels."

The complainant reiterated their request "(...) I do not want copies... At no time have I requested such a thing. That is something you have interpreted. I assert my right to access EVERYTHING you have regarding my person, without exception, do not confuse it. Your considerations are not valid to me. On the other hand, I did not order the appraisal because I was not the interested party but Caja de Ingenieros. My request is always the same and there are no OTHER matters: EVERYTHING you have regarding my person, without exception: contracts, recordings, signatures, correspondence, emails, amortization and grace period payments, if applicable: I=CxRXT/36000, emails, etc."

Along with the complaint, the following is submitted:

- Thread of exchanged emails between the parties:

o On October 1, 2019, the respondent indicated that "(...) We inform you that you have available, in your Online Banking, the amortization table of your mortgage loan, which you will find by accessing Loans/Queries/Amortization Table. The formulas applied are those stated in the deed. (...) "

o Response from the complainant on the same date "(...) What you mention I have already seen... but it is not what I have requested. I also know the formulas but that is not what I have requested.

Therefore, I repeat my request: I would like to know how the monthly calculation of the mortgage is made for each of the months of the years 2015, 2016, 2017, 2018, and 2019. The formula/s I already have in the deeds. What I want is to see those formulas translated into numbers month by month from August 2015 to now, month by month with specific numbers. (...) "

- Written response dated October 13, 2023, from the respondent in response to the access request made by the complainant on September 16, 2023, in which they attach:

- Mortgage certificate dated ***DATE.1.
- Current account contract, signed on ***DATE.2.
- Contract for the use of the Teleingenieros service, stamped on ***DATE.3.
- Documents for the registration of a new member, signed on ***DATE.2, which includes:

1. new member application;
2. member registration;
3. member registration: anti-money laundering control data;
4. MiFID information;
5. pre-contractual information for the Teleingenieros Service.
 - Mortgage loan deed dated ***DATE.4, and protocol number (...).
 - Pre-contractual information of the mortgage loan that includes the personalized information sheet (FIPER) and binding offer variable type, general conditions, dated ***DATE.6.
 - Negative contact record via email with the email address (...)
 - Report of the data of the IP connections/authentication in electronic and/or telephone banking for the following periods:
 1. From (...);
 2. From (...);
 3. From (...).
 - Queries in the three internal databases dated ***DATE.7.
 - Life insurance policy, with the contract effective date ***DATE.4, which includes:

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1. Informative note from the insurance entity;
2. Particular conditions of life insurance;
3. General conditions of life insurance.
 - Main home insurance policy, with the contract effective date ***DATE.8, which includes the general and particular conditions.
 - Individual accident policy, with the contract effective date ***DATE.4, which includes the particular conditions.
 - Copy of the national identity document valid until ***DATE.9.
 - Copy of the national identity document valid until ***DATE.10.

Regarding the conversations, only one call to Telephone Banking has been identified on (...). This recording is available for you to listen to at your nearest office, located at ***ADDRESS.1, or if you prefer, we can make it available at any other branch of the entity. (...)

Concerning the details of the calculation of the fees, we regret to inform you that it does not fall within the scope of data protection regulations, so you should contact the commercial network if you have any questions regarding this matter. (...)

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Email thread exchanged between the parties:

- o On September 16, 2023, the claiming party requested “(...) EVERYTHING you have related to me, without exception: contracts, recordings, signatures, correspondence, amortization and grace period fees, if applicable: I=CxRXT/36000, emails, etc.”
- o Response dated October 13, 2023, from the responding party indicating that “(...) we have prepared a detailed response that includes the requested information.”
- o Email from the responding party providing the password to decrypt the documentation provided.
- o Email from the claiming party dated January 12, 2024, indicating “(...) You have forgotten to send me the appraisal document and the invoice for it. Are you going to send it to me or do I have to do it through the AEPD? (...)”
- o Response from the responding party dated February 5, 2024, “(...) The right of access recognized in privacy matters does not cover the obtaining of copies of banking documentation as a result of the existing business relationship with the Entity.

Thus, the information regarding the requested appraisal is understood to correspond to the data collected in a product acquisition order that the interested party placed at the time, which is why this documentation is considered as a document associated with the business relationship inherent to a

mortgage product contract.

This criterion was established by the AEPD in response to the appeal for reconsideration No. RR/00364/2021, and in the Resolution for the Archiving of Proceedings followed in file EXP202212480.

For other matters, you may contact the Member Services channels. (...)”

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Response from the claimant on February 5, 2024 “(...) I do not want copies... At no time have I requested such a thing. That is something you have interpreted.

I assert my right to access EVERYTHING you have related to me, without exception, do not get confused. Your considerations are of no value to me.

On the other hand, I did not order the appraisal because I was not the interested party but Caja de Ingenieros.

My request is always the same and there are NO OTHER issues: EVERYTHING you have related to me, without exception: contracts, recordings, signatures, correspondence, emails, amortization and grace period payments, if applicable: I=CxRXT/36000, emails, etc. (...)”

SECOND: In accordance with Article 65.4 of the LOPDGDD, the aforementioned claim was forwarded to the responding party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations. The notification of this transfer occurred on March 20, 2024.

On April 4, 2024, the responding party stated in their response to that transfer procedure, in summary, that

"On September 16, 2023 (...), the claimant requested via email the mediation of the DPD of Caja de Ingenieros regarding the process of obtaining everything related to her, without exception: (...). This mediation request was sent to the email designated to handle requests for rights recognized in privacy matters, which is dpo@caja-ingenieros.es." (September 16, 2023).

"(...) on October 13, 2023 (...) the DPD addressed the request of the interested party (...)."

"(...) To ensure the confidentiality of the data made available to the interested party, the information was sent in an encrypted form, providing her in a subsequent email, (...) the password for decryption." (October 13, 2023).

"Once the information was provided by the DPD, the claimant reiterated her request on January 12, 2024 (...), requesting the appraisal document and its invoice, supporting her request with the exercised right of access under Article 15 of the GDPR. (...) The DPD addressed this new request informing the interested party that, unless better legal criteria apply, the provision of the requested information related to the appraisal document and its invoice is not covered by the right of access in data protection in accordance with Article 15 of the GDPR." (February 5, 2024)

"(...), the interested party continued to reiterate her request, (...). The DPD reaffirmed that the right of access, recognized in Article 15 of the GDPR, does not cover the obtaining of copies of certain documents associated with a business relationship, in this case, 'the appraisal document and its invoice', needing to

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"to address this to the contact channels of Member Support." (February 5, 19, and 21, 2024).

"(...) the information regarding the appraisal and documentation related to it corresponds to the data collected in a product acquisition order that the interested party placed at that time, hence this documentation is considered as a document associated with the business relationship inherent to a

mortgage product contract."

Given the above, this Agency, in its resolution dated April 29, 2024, decided to reject the claim.

THIRD: Dissatisfied with the resolution, the claiming party filed a motion for reconsideration arguing that "(...) not all the claimed points have been addressed, and only the response from the responding party, accepted by the AEPD, to one specific point is mentioned, which is the Appraisal Document and its invoice. Firstly, several rulings from the CJEU have determined that I was not the one who ordered that product, since it was the banking entity that sought to know the appraisal of the property; moreover, it was they who managed everything. This is why now, under all those rulings, people like me are claiming the costs of establishing mortgages both amicably and judicially, and among them is the cost of that appraisal. This is the reason I request the documents in which my name appears. Returning to the points that have not been fully responded to or provided by the responding party, they are as follows: - contracts, - recordings, - signatures, - correspondence, - emails, - amortization and grace period payments, if applicable: I=CxRXT/36000 >>>

Regarding this missing point, the responding party claims that it does not fall within the scope of data protection regulations, adding that I could contact the commercial network if I had any questions about it, which I had already done several times since June 10, 2020, receiving a negative response to some (a negative response that they must have in those emails I sent, to which some replied and which they have not provided to me, like so many others, in my request for the right to access) and silence on others. How can I obtain such documentation related to myself, because it is, since I pay the mortgage because it is directed to me and not to anyone else? Should I address the Directorate General of Insurance and Pension Funds or where to have it provided to me?"

The procedure for the corresponding Motion for Reconsideration was instructed, in which the responding party was given a hearing, and on August 20, 2024, the Director of this Agency deemed it appropriate because the responding party has provided the right of access incompletely.

In the resolution of the aforementioned motion for reconsideration, it is indicated that "(...) In this case, the responding party has stated in response to both the transfer action and the request for information as well as in the hearing process of this optional motion for reconsideration, that it has addressed the requested right of access, providing the claiming party with all the information it has in which their personal data is included. Furthermore, it was informed that it was available for the claiming party to listen to the recording dated June 15, 2023.

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However, regarding the appraisal document and its invoice, the party being claimed considers that access should not be granted as it pertains to data collected in a product acquisition order, arguing that such documentation, as a document associated with the business relationship inherent in a mortgage product contract, would not fall within the scope of Article 15 of the GDPR.

In this regard, the Judgment of the Court of Justice of the European Union of May 4, 2023, in case C-487/21 should be taken into consideration, which states that Article 15, paragraph 3, first sentence of the GDPR must be interpreted to mean that "the right to obtain from the data controller a copy of the personal data undergoing processing implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation."

Consequently, entire documents or extracts of documents containing the personal data concerning the interested parties may be provided. In the case at hand, the right of access has been fulfilled incompletely, thus the appeal lodged should be upheld."

FOURTH: As a result of the acceptance of the aforementioned Appeal for Reconsideration, the present Rights Procedure was initiated, transferring the documentation to the party being claimed, so that within ten working days it could present the allegations it deemed appropriate, stating, in

summary, that

"(...) FIRST. – That the content of the right of access, as stated by the EDPB in Guidelines 01/2022 on the rights of data subjects – Right of access, dated March 28, 2024, consists of three elements:

✓ Confirmation of whether or not personal data is being processed.

✓ Access to the personal data being processed.

✓ Information about the processing and about the rights of the data subjects.

However, the EDPB continues, "any request for information on other issues, [...] should not be considered a request made under Article 15 of the GDPR."

In this sense, and unless otherwise advised, the content of the right of access is limited by the definition that Article 4.1 of the General Data Protection Regulation establishes for the concept of "personal data":

"any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;"

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Furthermore, as the EDPB has made clear in the aforementioned Guidelines, the main objective of the right of access is to have control over one's personal data in order to know and verify the lawfulness of the processing.

SECOND.- That, as the EDPB itself has stated, providing a copy to the data subject exercising their right of access is not an additional right of the data subject, but rather a means of facilitating access to the data.

In this same vein, the Recurso de Reposición No. RR/0364/2021, resolved by this same body, established that "it must be reiterated that the right of access, recognized in Article 15 of the GDPR, does not support the obtaining of copies of certain documents associated with a business relationship, in this case, the financing contract signed."

Likewise, the resolution R/00151/2021 (TD/00004/2021), concerning the obtaining of copies of specific documents for which there are other specific access channels or that could contain third-party data:

"Upon examining the documentation in the file, it is observed that the claimant's intention is to obtain copies of documents; in this regard, we must point out that, according to the regulations on data protection, the claimant can only request their own personal data, or that of those individuals they represent; specifically, said document may contain other data that do not constitute personal data of the claimant.

The right of access is the right that data subjects have to know what data is being processed by the data controller, the data subject to processing, the purpose of this, the source of the data, and whether it has been or will be communicated to third parties. Generally speaking, the copy or access to documents or specific information does not form part of the content of the right of access regulated in the current data protection regulations.

Therefore, this request did not refer to personal data in accordance with the data protection regulations established in the GDPR; thus, this request cannot be considered as one of the rights regulated by the GDPR (access, rectification, erasure, objection), since the data protection regulations do not support the request for specific documents, regardless of whether other regulations support the obtaining of such documentation, this Agency lacking the competencies for its analysis."

Although the claimant, in their capacity as a consumer, may resort to other avenues that have been made available to them for the delivery of the requested documentation.

THIRD.- That, the information associated with the business relationship (in this case, the documentation requested by the claimant is documentation associated with the mortgage contract) is

also not included in the content of the right of access, as it is documentation that, in our understanding, is requested, ordered, and provided by the client (just like...

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can be, for example, the payrolls that can be provided for the granting of the credit)

As this same body stated in a similar case (in this case regarding bank transfers and their necessity to be considered documents associated with the business relationship inherent to a current account contract):

“However, once the reasons presented by the responding party, which are in the file, have been analyzed, it is considered that the rejection by that party of the request made is in accordance with the regulations on the protection of personal data, without the need to urge the adoption of additional measures since the requested right has been addressed, therefore, in view of the actions taken, the filing of the complaint presented is appropriate.”

FOURTH.- That, likewise, as pointed out by the Spanish Agency for the Protection of Data in File No.: EXP202100108 (TD/00226/2021), the right of access covers the obtaining of registered base information, but not the data derived from a contractual relationship.

“In this regard, it should be noted that the interested party has the right to obtain from the controller the data that is the subject of the processing and thus be able to verify that the data is accurate, that the use or processing is limited to the data strictly necessary for the purpose that is made according to the relationship between the interested party and the controller, and in the case of disagreement, to be able to exercise any of the rights established in the GDPR.

Once the documentation in the procedure has been examined, it is observed that the request of the complaining party is not for access to the registered base data, but rather for the obtaining of a series of data related to the hours worked.

Regarding this request, it should be noted that the right of access consists of obtaining information from the registered base personal data. Therefore, the obtaining of data derived from the employment contractual relationship is outside the right of access configured in the data protection regulations, all of which is independent of whether sectoral regulations cover the obtaining of such data.”

FIFTH.- That, unless otherwise indicated, we understand that the stipulations in the data protection regulations for the right of access have been fulfilled, having made available to the complainant on October 13, 2023:

- “Mortgage certificate dated ***DATE.1.
- Current account contract, signed on ***DATE.2.
- Contract for the use of the Teleingenieros service, stamped on ***DATE.3.
- Documents for the registration of a new member, signed on ***DATE.2, which include:
 1. new member application;
 2. member registration;
 3. member registration: money laundering control data;
 4. MiFID information;
 5. pre-contractual information for the Teleingenieros Service.

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- Mortgage loan deed dated ***DATE.4, and protocol number (...).
- Pre-contractual information of the mortgage loan that includes the personalized information sheet (FIPER) and binding offer variable type, general conditions, dated ***DATE.6.
- Negative contact record via email with the email address (...).

- Report of the data from IP connections/authentication in electronic banking and/or telephone for the following periods:

1. From (...);
2. From (...);
3. From (...).

- Queries in the three internal databases dated ***DATE.7.

- Life insurance policy, with contract effective date ***DATE.4, which includes:

1. Informative note from the insurance entity;
2. Particular conditions of life insurance;
3. General conditions of life insurance.

- Main home insurance policy, with contract effective date ***DATE.8, which includes the general and particular conditions.

- Individual accident policy, with contract effective date ***DATE.4, which includes the particular conditions.

- Copy of the national identity document valid until ***DATE.9.

- Copy of the national identity document valid until ***DATE.10.

Regarding the conversations, only one call to (...) has been identified on the past (...) where it was (...), which had been charged to the account held on (...). This recording is available for you to listen to at your nearest office, located at ***ADDRESS.1, or if you require, we can make it available to you at any other branch of the entity.

SIXTH.- That, therefore, this party believes it has complied with all the requirements demanded by the current privacy regulations, having responded to the request for the right of access on October 13, 2023, making available to the interested party all the documentation that falls within the content of the right of access.

However, from the commercial network (the correct channel for requesting the appraisal and its invoice, as well as the details of the amortization calculations), they have contacted the complainant to provide the information that is not covered by data protection (ANNEX ONE). (...)"

FIFTH: Examined the document submitted by the responding party, it is transferred to the complaining party, so that, within ten working days, they may formulate the allegations they deem appropriate, indicating, in summary, and as far as this procedure is concerned, that

"(...) My personal data is linked to documentation that concerns me, and that documentation and information has not been provided to me through other channels despite having requested it countless times over all these years that I have had the mortgage with

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Caja de Ingenieros. Furthermore, those calls and emails regarding my claim have not been provided to me in any of the complaints filed with the AEPD.

My personal data includes all information pertaining to me.

At this moment, I do not know nor can I verify the legality of the processing since economic data is being hidden from me that, as I have previously stated, I have requested actively and passively for almost 10 years.

Caja de Ingenieros, in its second allegation, diverts attention solely and exclusively to the lack of support for obtaining a copy of the signed financing contract, but my request to this entity was much broader and includes other accesses that have not been provided to me and that I have already mentioned in previous allegations.

And if I ultimately claimed EVERYTHING, it was because they never amicably addressed the specific matters I requested during those almost 10 years through other specific access channels that exist for obtaining it, and I had no choice but to do so. And even then, they have not yet sent me the specific information I requested. Other documentation yes, but it is still lacking.

If, as a stumbling block, they claim that it contains third-party data and therefore do not want to grant

me the requested access, I would like to point out that those third parties are my parents, (...)

My intention is not to obtain copies of documents. (...)

My data is being processed to charge me for the mortgage, and to charge me for the mortgage, calculations and formulas must be applied, among others, that are different from those that must be applied to someone else's mortgage. Therefore, those charges, formulas, quantifications, etc. are completely tied to me, and I have the right to access them.

If this is called specific information, as it is under my name, it is information to which I have the right to access.

(...)

The other channels that Caja de Ingenieros has made available to me have been completely ineffective in almost 10 years, receiving negative responses, dismissal, or silence. Why doesn't Caja de Ingenieros send me all those emails and claims that I have filed and the responses provided?

There is documentation associated with the mortgage contract that I do not have access to and I want to have it, especially due to the principle of TRANSPARENCY. This documentation is not something that I have provided.

(...)

They are being used and processed to charge me as Caja de Ingenieros sees fit, because they do not explain or demonstrate it to me. And at this point, after trying countless times, I believe that the right to access is the only way I can obtain it.

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(...) In the Fifth allegation, it states that a "Negative contact register via email with the email address (...)" has been made available to me. Does this mean that they are telling me that there has been no contact via email with me at the email (...)? Because if that is what they are saying, it is completely false, and I can prove that I have numerous emails back and forth with Caja de Ingenieros repeatedly requesting the same thing for almost 10 years.

(...) Yes, I have NOW received the details of the amortization payment calculations, but not their explanation of how they perform the calculation for what they charge me monthly, which is what I have been requesting for almost 10 years (I asked them to provide me with an example, and nothing).

SIXTH: Having granted a hearing to the responding party, on October 23, 2024, it states, in summary, and as far as this procedure is concerned:

"(...) That, not only, we understand, has all documentation been provided that, unless better legal criteria, is part of the Right of Access, as set forth in the aforementioned Article 15 of the GDPR, as well as in the EDPB Guidelines 01/2022 on the rights of data subjects – Right of access, dated March 28, 2024, and the one already cited in our previous responses, which we understand has been the criterion of the Spanish Agency for Data Protection; but also, documentation of an economic nature associated with the mortgage contract.

THIRD.- In its new writing, it reiterates what has already been expressed in its response to the AEPD. That the documentation that has been delivered to the interested party consists of:

- "Mortgage certificate dated ***DATE.1.
- Current account contract, signed on ***DATE.2.
- Contract for the use of the Teleingenieros service, stamped on ***DATE.3.
- Documents for the registration of a new member, signed on ***DATE.2, which includes:
 1. new member application;
 2. member registration;
 3. member registration: anti-money laundering data;
 4. MiFID information;
 5. pre-contractual information for the Teleingenieros Service.
- Mortgage loan deed dated ***DATE.4, and protocol number (...).

- Pre-contractual information of the mortgage loan that includes the personalized information sheet (FIPER) and binding offer variable type, general conditions, dated ***DATE.6.
- Negative contact register via email with the email address (...).
- Report of the data of the IP connections/authentication in electronic banking and/or telephone for the following periods:
 1. From (...);
 2. From (...);
 3. From (...).
- Queries in the three internal databases dated ***DATE.7.

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- Life insurance policy, with contract effective date ***DATE.5, which includes:
 1. Informative note from the insurance entity;
 2. Particular conditions of life insurance;
 3. General conditions of life insurance.
- Home insurance policy, with contract effective date ***DATE.8, which includes the general and particular conditions.
- Individual accident policy, with contract effective date ***DATE.5, which includes the particular conditions.
- Copy of the national identity document valid until ***DATE.9.
- Copy of the national identity document valid until ***DATE.10.

Regarding the conversations, only one call has been identified to (...) on the past (...) where it is requested (...), which had been charged to the account of ownership on (...). This recording is available for you to listen to at your nearest office, located at ***ADDRESS.1, or if you require, we can make it available to you at any other branch of the entity.

Additionally, a copy of the appraisal, receipt of the appraisal (since CAJA DE INGENIEROS does not have the invoice), and an extract of the historical fees have also been provided.

(...) FIFTH.- The claimant mentions that their intention is not to obtain copies of documents; however, obtaining copies is a mode of compliance with the exercise of rights presented by the claimant.

SIXTH.- Due to a misunderstanding, the claimant mentions that in our previous writing a labor relationship is mentioned, or it is alleged that the documentation contains third-party data. However, while these are not exact resolutions to the specific case, these mentions are citations to resolutions from the Spanish Agency for Data Protection [R/00151/2021 (TD/00004/2021) and EXP202100108 (TD/00226/2021)].

SEVENTH.- Regarding the emails, it is necessary to bring up the principle of limitation of the retention period (Article 5.1.e) GDPR), which establishes that personal data should not be retained longer than necessary for the purposes of processing. Therefore, these emails cannot be retained ad infinitum; rather, the staff of CAJA DE INGENIEROS must delete emails after this period. (...)

EIGHTH.- The claimant requests: "My data is being processed to charge me for the mortgage, and to charge me for the mortgage, calculations and formulas must be applied, among others, which are different from those that must be applied to another person's mortgage. Therefore, those charges, formulas, quantifications, etc. are completely linked to me, and I have the right to access them."

However, unless the AEPD disagrees, we understand that this calculation does not contain personal data. These mortgage fees are calculated using the same formula across all Spanish financial entities and do not depend on any other factor than the capital borrowed and the payment of interest. (...)

SEVENTH: On January 1, 2025, the claimant submitted a new writing to this Agency, indicating "(...) Yes, I have NOW received the details of the amortization fee calculation, but not their explanation of how they perform the calculation for what they charge me monthly, which is what I have been requesting for almost 10 years (I asked them to give me an example, and nothing). (...) Many emails are missing where I claimed part of the above and many more things, and their responses or the

absence of them and the non-resolution of the problems raised, such as not informing me in a timely manner of the new insurance premiums so that I could act accordingly, and charging me the premium without any word. These emails were with the office that corresponds to me and even with directors. (...) My personal data is linked to documentation that concerns me, and that documentation and information has not been provided to me through other means despite having requested it countless times over all these years that I have had the mortgage with Caja de Ingenieros. (...) The other means that Caja de Ingenieros has made available to me have been completely ineffective in almost 10 years, receiving a negative response, being ignored, or silence. Why doesn't Caja de Ingenieros send all those emails and claims that I have submitted and the responses provided?"

The claimant has provided:

- Email from the responding party dated October 7, 2019, to the claimant, stating "(...) First of all, we apologize for the delay in the response. We regret that we cannot meet your request as you have asked, but the information we can offer you is the one that officially appears in the deed and in the amortization table of your loan."
- Email dated June 10, 2020, from the claimant "(...) As we discussed on the phone today and as promised, I am writing to you about the method of applying the mortgage amortization fee. In the "fractional fee," the 365/360 method is not applied to me, as you divide the total interest by the total number of days in a calendar year (365) to calculate daily interest. However, the same is not done for the "amortization and grace fee." I understand that daily interest should be calculated based on 365 days of the year and not based on 360 days. In fact, I do not understand why it is done this way for the fractional fee and not for the amortization fee."
- Copy of the response from the responding party dated October 13, 2023, in which they provided their data, which was already submitted along with the original complaint of this procedure.

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- Written "Description of the Facts" where the claimant recounts what is indicated in the first paragraphs of this Seventh Fact
- Email dated October 1, 2019, sent by the claimant to the respondent, which has already been submitted along with the initial claim
- Thread of emails exchanged by the parties following the claimant's request on September 16, 2023, various intermediate emails, and the response from the respondent dated February 5, 2024, already submitted previously along with the initial claim

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Presidency of the Spanish Data Protection Agency is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the

function of cooperating with that authority.

The opening of this procedure occurs due to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the admission agreement was notified to the claimant. Once this period has elapsed, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers to address any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to state its reasons if it does not intend to comply with such request. The burden of proof for compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and plain language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right is...

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If it refers to a large amount of data, the data controller may request the data subject to specify the "data or processing activities referred to in the request." The right will be deemed granted if the data controller provides remote access to the data, considering the request fulfilled (although the data subject may request information regarding the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the data subject chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the data subject.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the

possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if not obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

Article 4 of the GDPR, Definitions, provides that:

“For the purposes of this Regulation, the following definitions shall apply:

1) ‘personal data’: any information relating to an identified or identifiable natural person (‘data subject’); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

(...)”

Article 15 of the GDPR, Right of access of the data subject, provides that

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“1. The data subject shall have the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data and to the following information:

- a) the purposes of the processing;
 - b) the categories of personal data concerned;
 - c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
 - d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
 - e) the existence of the right to request from the controller the rectification or erasure of personal data or the restriction of processing of personal data concerning the data subject, or to object to such processing;
 - f) the right to lodge a complaint with a supervisory authority;
 - g) when the personal data have not been obtained from the data subject, any available information as to their source;
 - h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in those cases, meaningful information about the logic involved, as well as the significance and the anticipated consequences of such processing for the data subject.
2. When personal data are transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards pursuant to Article 46 relating to the transfer.
3. The data controller shall provide a copy of the personal data undergoing processing. The controller may charge a reasonable fee based on the administrative costs for any further copies requested by the data subject. When the data subject makes the request by electronic means, and unless otherwise requested, the information shall be provided in a commonly used electronic format.
4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.”

Likewise, the LOPDGDG regulates the right in its Article 13, in the following terms:

1. The right of access of the data subject shall be exercised in accordance with the provisions of Article

15 of Regulation (EU) 2016/679.

When the controller processes a large amount of data relating to the data subject and the data subject exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the data subject specify the data or processing activities to which the request refers before providing the information.

2. The right of access shall be deemed granted if the data controller provides the data subject with a remote, direct, and secure access system to the personal data that ensures, on a permanent basis, access to the entirety of the data. For these purposes, the communication by the controller to the data subject of how they can access the data shall be sufficient.

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Accessing said system will suffice to consider the request for the exercise of the right as attended to. However, the interested party may request from the responsible party the information referred to in the terms provided in Article 15.1 of Regulation (EU) 2016/679 that was not included in the remote access system.

3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access may be considered repetitive if exercised more than once within a six-month period, unless there is a legitimate reason for it. (...)

The Guidelines 1/2022, from the European Data Protection Board, adopted on March 28, 2023, which approve the Application Guide for Article 15 of the GDPR, regarding the Right of Access of the Interested Party, establish that

“3. Under the GDPR, the right of access consists of three components, namely, the confirmation of whether or not personal data is being processed, access to such data, and information about the processing itself. The interested party may also obtain a copy of the personal data processed; however, this possibility is not an additional right of the interested party, but a means of facilitating access to the data. Thus, the right of access can be understood both as the possibility for the interested party to request the data controller whether personal data concerning them is being processed, and as the possibility to access and verify such data. The data controller will provide the interested party, based on their request, with the information that falls within the scope of Article 15, paragraphs 1 and 2, of the GDPR.

The aforementioned Guidelines 1/2022 indicate, regarding access through the modality of a copy, that: “150. In this context, it is important to remember that there is a distinction between the right to obtain access under Article 15 of the GDPR and the right to receive a copy of administrative documents regulated by national law, the latter being a right to always receive a copy of the actual document. This does not mean that the right of access provided in Article 15 of the GDPR excludes the possibility of receiving a copy of the document or the means in which the personal data appears.

151. In some cases, the personal data itself establishes the requirements regarding the format in which personal data must be provided. When personal data consists, for example, of handwritten information by the interested party, in some cases the interested party must receive a photocopy of such handwritten information, as the writing itself is personal data. This could be especially the case when the handwriting is something that matters for processing, for example, handwriting analysis. The same generally applies to audio recordings, as the voice of the interested party is personal data. However, in some cases, access may be granted by providing a transcription of the conversation, for example, if agreed upon between the interested party and the data controller.”

In relation to the above, it is necessary to bring to attention the Judgment of the Court of Justice of May 4, 2023, in case C-487/21, which determines that

“28. Therefore, from the literal analysis of Article 15, paragraph 3, first sentence, of the GDPR, it follows that this provision grants the interested party the right to obtain an authentic reproduction of their personal data, understood in a broad sense, that are subject to operations that must be classified as processing by the data controller.

(...)

32. Consequently, Article 15 of the GDPR cannot be interpreted as enshrining, in its paragraph 3, first sentence, a right distinct from that provided in its paragraph 1. On the other hand, as the European Commission has pointed out in its written observations, the term “copy” does not refer to a document as such, but to the personal data it contains, which must be complete. Therefore, the copy must contain all the personal data subject to processing.

(...)

44. Therefore, as emphasized by the Advocate General in point 61 of his conclusions, in the event of a conflict between, on the one hand, the exercise of the right to full and complete access to personal data and, on the other, the rights or freedoms of others, a balancing of the rights and freedoms in question must be carried out. Whenever possible, modalities of communication of personal data that do not infringe the rights or freedoms of others should be chosen, bearing in mind that, as stated in Recital 63 of the GDPR, such considerations must not “result in the refusal to provide all information to the interested party.”

45. In light of the above considerations, it is appropriate to respond to the preliminary questions first to third that Article 15, paragraph 3, first sentence, of the GDPR must be interpreted as meaning that the right to obtain from the data controller a copy of the personal data subject to processing implies that an authentic and intelligible reproduction of all such data is provided to the interested party. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the interested party to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized that the rights and freedoms of third parties must be taken into account in this regard.”

In the same vein, the Judgment of the Court of Justice of the European Union of June 22, 2023, in case C.579/2021, indicates that,

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“64. In this regard, the Court of Justice has already stated that the concept of 'copy' as used here refers to the authentic reproduction or transcription of an original, so that a purely general description of the data subject to processing or a reference to categories of personal data would not correspond to this definition. Furthermore, from the wording of Article 15, paragraph 3, first sentence, of that Regulation, it follows that the obligation to communicate is linked to the personal data that are the subject of the processing in question (see, in this sense, the judgment of May 4, 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraph 21).

65. The copy that the data controller must provide must contain all the personal data subject to processing, present all the characteristics that allow the data subject to effectively exercise their rights under that Regulation, and, consequently, reproduce those data in a complete and authentic manner (see, in this sense, the judgment of May 4, 2023, Österreichische Datenschutzbehörde and CRIF, C-487/21, EU:C:2023:369, paragraphs 32 and 39).”

The right of access in its copy modality implies “...that an authentic and intelligible reproduction of all those data is provided to the data subject,” and, likewise, “This right includes the right to obtain a copy of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized the necessity of taking into account, in this regard, the rights and freedoms of third parties,” which entails that each specific case must be examined.

“1) Article 15, paragraph 3, first sentence, of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), must be interpreted as meaning that the right to obtain from the data

controller a copy of the personal data subject to processing implies that an authentic and intelligible reproduction of all those data is provided to the data subject. This right includes the right to obtain a copy of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized the necessity of taking into account, in this regard, the rights and freedoms of third parties.

2) Article 15, paragraph 3, third sentence, of Regulation 2016/679 must be interpreted as meaning that

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The concept of "information" referred to exclusively pertains to the personal data for which the data controller must provide a copy in accordance with the first sentence of that section."

In the case analyzed here, and considering what is indicated in the first paragraphs of this Legal Basis, it has been established that the complainant requested from the respondent "(...) Under LOPD everything you possess related to my person, without exception: contracts, recordings, signatures, correspondence, amortization and grace period payments, if applicable: I=CxRXT/36000, emails, etc." and that the respondent provided various information.

However, the complainant expressed their disagreement, considering that not all requested information had been provided, and filed a complaint with this Agency after sending a new email to the respondent dated February 5, 2024, in which they stated "(...) I do not want copies... At no time have I requested such a thing. That is something you have interpreted. I assert my right to access EVERYTHING you possess related to my person, without exception, do not confuse it. Your considerations are not valid for me. On the other hand, I did not order the appraisal because I was not the interested party, but Caja de Ingenieros. My request is always the same and there are NO OTHER issues: EVERYTHING you possess related to my person, without exception: contracts, recordings, signatures, correspondence, emails, amortization and grace period payments, if applicable: I=CxRXT/36000, emails, etc. (...)"

During the processing of the present procedure, the respondent, on September 6, 2024, after receiving the admission to process sent by this Agency, stated that "(...) Therefore, this party believes it has complied with all the requirements set forth in the current privacy regulations, having responded to the request for the right of access on October 13, 2023, making available to the interested party all the documentation that falls within the scope of the right of access. However, from the commercial network (the correct channel to request the appraisal and its invoice, as well as the details of the calculation of the amortization payments), they have contacted the complainant to provide the information that is not covered by data protection (ANNEX ONE). (...)"

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the data controllers are obligated to issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is also obliged to require the correction of the observed deficiencies or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

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Therefore, the request made obliges the responsible party to provide an express response, in any case, using any means that justifies the receipt of the response.

In this case, however, it is noted that during the processing of the claim that gives rise to this procedure, made precisely due to the lack of an adequate response to the request for the exercise of rights, the party being claimed has provided documentation proving the communication sent to the

interested party regarding the right or informing about the decision made regarding the request. This response, therefore, occurs after the established deadline has passed.

In this regard, it should be specified that the response that corresponds to be made cannot be expressed merely as part of an administrative procedure. Consequently, considering that the purpose of this procedure is to ensure that the guarantees and rights of those affected are duly restored, combining the information in the file with the regulations referred to in the preceding sections, it is appropriate to formally uphold the present claim due to the response being issued late, without requiring the responsible party to carry out additional actions in order to issue a new certification regarding the attention to the right.

On the other hand, the claiming party has repeatedly stated during the instruction of this procedure that "(...) And if in the end I claimed EVERYTHING it was because I was never amicably attended to regarding the specific matters I requested over those almost 10 years through other specific access channels that exist for obtaining it, and I had no other choice. (...)".

If the claiming party does not obtain the requested information through the specific regulatory access means related to the matter at hand, in this case, banking, they have the option, if it suits their rights, to address the competent authorities to analyze and assess the circumstances of that lack of access attention, as this Spanish Agency for Data Protection lacks the competencies for that.

Consequently, in the present case, from the examination of the documentation in the file, it must be considered that the right of access regulated in the data protection regulations, if it may have been incomplete at first, has been completed during the instruction of this procedure, and therefore, it is appropriate to uphold the claim presented for formal reasons.

In view of the cited provisions and others of general application, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by A.A.A. against CAJA DE CRÉDITO DE LOS INGENIEROS, S.C.C. However, it is not appropriate to issue a new certification by the claimed party, as the response was issued late, without requiring the responsible party to carry out additional actions.

SECOND: NOTIFY this resolution to A.A.A. and to CAJA DE CRÉDITO DE LOS INGENIEROS, S.C.C.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 1381-090823

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency

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